

SEARCHES INVOLVING STUDENTS AND SEIZURE OF CONTRABAND

Loudoun County Public Schools (LCPS) recognizes that any search involves an invasion of privacy. In determining whether an administrative search is necessary, LCPS officials authorized to conduct searches must balance a student's right to privacy with the school division's responsibility to protect the health, safety, and welfare of all persons within the school community and to carry out its educational mission.

Under the circumstances described in this policy and in accordance with the procedures set forth in LCPS Regulation 8265, Searches Involving Students and Seizure of Contraband, LCPS officials who are trained in conducting student searches are authorized to search students, their personal belongings, and any LCPS property assigned to students for their use. Such authorized LCPS officials may also confiscate any contraband¹ discovered during a search.

A. Actions Constituting a Search. Generally, when LCPS officials must take affirmative steps to gain access to something that is not otherwise visible or accessible, their actions are more likely to constitute a search. Examples of searches include opening a student's pocketbook, backpack, or other closed container; requiring a student to empty pockets; and accessing the contents of a student's personal electronic device.

B. Actions Not Constituting a Search. None of the following constitutes a search:

1. Observation of Items in Plain View. When LCPS officials observe items that are in plain view (including items in a vehicle that are observable from outside the vehicle), such does not constitute a search. However, such observation may provide reasonable suspicion to conduct a search.

2. Receipt of Items Voluntarily Produced. When LCPS officials receive item(s) voluntarily produced by students, such does not constitute a search. However, receipt of such an item may provide reasonable suspicion to conduct a search.

3. Use of Video and Audio Surveillance. Public areas of school property are subject to video and audio surveillance and recording; such does not constitute a search. However, the words or actions of a student captured by a video or audio recording may provide reasonable suspicion to conduct a search.

4. Monitoring of LCPS Technology. Students have no right to privacy when using LCPS technology. Accordingly, the routine monitoring of LCPS technology as set forth in Policy 8650, Student Technology Acceptable/Responsible Use Policy, does not

¹ As used in this policy, "contraband" means any item that poses a danger to persons or property, disrupts instruction or the operation of the school or an LCPS-sponsored activity, is prohibited by School Board policy or LCPS regulation, or provides evidence of the same.

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constitute a search. However, discovery of information in the course of routine monitoring of LCPS technology may provide reasonable suspicion to conduct a search.

5. Inspection of Abandoned Property. Any property that is abandoned on LCPS property or at an LCPS-sponsored activity² may be inspected to identify the owner and/or to ensure it contains no item that could compromise the health, safety and/or welfare of others; such does not constitute a search. However, the inspection of abandoned property may provide reasonable suspicion to conduct a search.

C. Permissible Searches. Student searches shall be conducted primarily for the purpose of maintaining order, discipline, and safety on LCPS property and at LCPS-sponsored activities, and not for purposes of criminal prosecution. Except as provided in Section E below, authorized LCPS officials may search students, their personal belongings, and their LCPS-assigned storage spaces only when one or more of the following exists:

1. Consent. Consent exists when the student or the minor student's parent or guardian agrees to the search voluntarily and without undue influence. Consent may be withdrawn at any time. Solely refusing to consent to a search shall not result in disciplinary action.

2. Reasonable Suspicion. Reasonable suspicion exists when there is a reasonable ground to suspect that the search will yield evidence of a violation of law, School Board policy or LCPS regulation. Any search conducted on the basis of reasonable suspicion must be justified at its inception and reasonably related in scope to the circumstances that justified the search. The manner, location, and extent of the search must not be excessively intrusive in light of the student's age, sex, and the nature of the suspected violation; and must be appropriate to the objectives of maintaining order, discipline, and safety.

- a. When reasonable suspicion exists, an authorized LCPS official may, but is not required to, seek the student's permission before conducting the search.
- b. A student who refuses to cooperate or interferes with a search conducted on the basis of reasonable suspicion is subject to disciplinary action.

² LCPS-sponsored activities are defined in Policy 8020, Relations with School Support Organizations.

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D. Prohibited Searches.

1. LCPS officials are prohibited from conducting strip searches.
2. To the extent a student or a minor student's parent or guardian provides consent for a urinalysis exam and/or breathalyzer test as a condition of participation in a special program, LCPS will utilize a third-party to conduct such searches.

E. General Inspections of LCPS Property. In accordance with the procedures set forth in LCPS Regulation 8265, authorized LCPS officials may conduct general inspections on a periodic or random basis of desks, lockers, and other storage spaces that LCPS provides to students for their use. Such inspections may include opening these spaces and examining their contents. The student to which the LCPS property is assigned is responsible for its contents.

1. Nothing in this policy shall be construed to prevent an authorized LCPS official, in an emergency, from opening and inspecting a locker or other LCPS storage space and its contents if the official has reason to believe that the immediate safety or welfare of persons or LCPS property is at risk.

F. Searches Conducted on an Individual Basis of LCPS Property Assigned to Students. When they have reasonable suspicion and/or consent, and in accordance with the procedures set forth in LCPS Regulation 8265, authorized LCPS officials may search, on an individual basis, LCPS property assigned to students.

G. Searches of Students' Personal Belongings. Authorized LCPS officials may search, on an individual basis, the personal belongings of any student, including but not limited to the student's pocketbook, wallet, backpack, electronic device(s), and/or vehicle (which is parked on LCPS property or in the designated parking area for an LCPS-sponsored activity) when: 1) the item is on LCPS property or in the designated location for an LCPS activity; and 2) authorized LCPS officials have reasonable suspicion and/or consent.

1. If the search of a student's electronic device reveals possible pornography of any type, LCPS officials shall promptly notify law enforcement and secure the device. The imagery shall not be distributed, transmitted or shown to anyone except law enforcement.

H. Searches of Students. When an authorized LCPS official has reasonable suspicion and/or consent, a student may be searched, including by electronic means. Such searches may extend to pockets; the removal and inspection of outer garments such as jackets, coats, sweaters, or shoes; and items in the possession of the student, such as a pocketbook, backpack or electronic device.

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- I. Use of Weapon Detection Systems. Students entering LCPS property or an LCPS-sponsored activity may be required to enter through a metal detector or be subject to another weapon detection system.
- J. Canine Searches. Authorized LCPS officials may request that law enforcement conduct canine searches on LCPS property.
 - 1. Canines shall not search students.
 - 2. Canines shall be accompanied by authorized trainers who will be responsible for the canines' actions.
 - 3. When a canine "alerts" on a particular storage space or vehicle, it provides LCPS officials reasonable grounds to suspect that the storage space or vehicle contains evidence of a violation of law, School Board policy or LCPS regulation. Accordingly, authorized LCPS officials may conduct an individual search of the storage space or vehicle.
- K. Seizure of Contraband. When an authorized LCPS official discovers contraband during a search, the contraband will be confiscated and handled in accordance with LCPS Regulation 8265.
- L. Law Enforcement. School Resource Officers (SROs) and other law enforcement officers are not LCPS employees and will not be involved in any search conducted by authorized LCPS officials, except to ensure physical safety. Any search initiated and conducted by an SRO or other law enforcement officer shall be in accordance with federal and state law; the agency's own policies; and, if applicable, the current version of the Memorandum of Understanding between the Loudoun County School Board and the Sheriff of Loudoun County and the Leesburg Police Department.
- M. Parent or Guardian Notification. An authorized LCPS official shall notify the parent or guardian of any student who is the subject of a search conducted by an LCPS official.
- N. Data Collection. LCPS officials shall document all searches conducted under this policy in the LCPS Student Information System, except for searches initiated and conducted solely by law enforcement officers. This data shall be reviewed annually at both the school and division levels.
- O. Training. LCPS officials who are authorized to conduct searches involving students shall be trained annually in the proper procedures and standards for conducting such searches, as set forth in LCPS Regulation 8265.

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Former Policy 8-2

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Legal Ref.: Section [§ 22.1-279.7](#) of the Code of Virginia

Cross Ref.: [Policy 8020](#), Relations with School Support Organizations; [Policy 8650](#), Student Technology Acceptable/Responsible Use Policy; [Memorandum of Understanding](#) between the Loudoun County School Board and the Sheriff of Loudoun County and the Leesburg Police Department; [Regulation 8265](#), Searches Involving Students and Seizure of Contraband